

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00182-CR

DANIEL HENSON, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 5th District Court
Bowie County, Texas
Trial Court No. 21F1437-005

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Judgment was entered in this matter on July 10, 2023, after Daniel Henson pled guilty to continuous sexual abuse of a child under fourteen years old. Here, Henson appeals from a September 15, 2026, order dismissing his "Request for Discovery of Exculpatory Evidence Pursuant to . . . Article 39.14" of the Texas Code of Criminal Procedure. *See* TEX. CODE CRIM. PROC. ANN. art. 39.14 (Supp.). For the reasons below, we dismiss his appeal for want of jurisdiction.

In Texas, a party may only appeal when the Texas Legislature has authorized an appeal. *Galitz v. State*, 617 S.W.2d 949, 951 (Tex. Crim. App. 1981); *see Abbott v. State*, 271 S.W.3d 694, 696–97 (Tex. Crim. App. 2008) ("The standard for determining jurisdiction is not whether the appeal is precluded by law, but whether the appeal is authorized by law."). In the absence of such authorizing legislation, appellate courts are without jurisdiction and have no authority to act. *See Raley v. State*, 441 S.W.3d 647, 650–52 (Tex. App.—Houston [1st Dist.] 2014, pet. ref'd). The Texas Legislature has not authorized an appeal from an order denying a post-conviction motion to compel discovery under Article 39.14. *See* TEX. CODE CRIM. PROC. ANN. art. 39.14; *Wilson v. State*, 644 S.W.3d 761, 762 (Tex. App.—Austin 2022, no pet.) ("There is no statutory authorization for an appeal from the denial of a motion to compel discovery under Article 39.14.").

By letter dated October 14, 2026, we informed Henson of this jurisdictional issue and afforded him an opportunity to respond. We advised Henson that if we did not receive a satisfactory response by October 26, 2026, we would dismiss the appeal for want of jurisdiction.

Although Henson filed a response, he did not provide a sufficient basis for retaining this matter on our docket.

Accordingly, we dismiss this appeal for want of jurisdiction.

Scott E. Stevens
Chief Justice

Date Submitted: October 29, 2026
Date Decided: October 30, 2026

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